

THIS SAFE AND THE CERTIFICATE TOKEN MAY BE SUBJECT TO ANY OR ALL OF THE RESTRICTIVE LEGENDS SET FORTH AT THE END OF THIS SAFE. PLEASE CHECK THE “LEGENDS” METADATA FIELD OF THE CERTIFICATE TOKEN FOR THE CURRENTLY APPLICABLE RESTRICTIVE LEGENDS.

SAFE
(Simple Agreement for Future Equity)

THIS CERTIFIES THAT in exchange for the payment by the Investor of the Purchase Amount pursuant to a Cyber-Securities Purchase Agreement entered into by the Investor and the Company (the “*Purchase Agreement*”), the Company issues to the Investor the right to certain shares of the Company’s Capital Securities, subject to the terms described below.

This SAFE is a certificated security (if the Company is formed in the United States, as defined in the Uniform Commercial Code (UCC) § 8-102(a)(4)) represented by a non-fungible blockchain token issued by the Company (the “*Certificate Token*”). The Certificate Token is intended to function as a security certificate (if the Company is formed in the United States, as defined in UCC §8-102(a)(16)) representing this SAFE.

This SAFE has been modified from one of the forms available at <http://ycombinator.com/documents> to accommodate the representation of the SAFE as the Certificate Token. A redline showing the changes is available at the following link:

<https://beige-just-flyingfish-108.mypinata.cloud/ipfs/bafybeicxix6dxlz2mq4e42mvscvxbyp756zuq47xrzf3eiuucx6pmqfoa>

No endorsement, approval, or investment from Y-Combinator is implied.

The Certificate Token was issued by the Company’s instance of the MetaLeX certificated security token protocol at <https://github.com/MetaLex-Tech/cybercorps-contracts/>, including an instance of *CyberCertPrinter.sol* (such instance, the “*CyberCertPrinter Smart Contract*”). Specific details of this SAFE are stored in a mapping of the *CertificateDetails* struct to the *tokenId* of the Certificate Token in the memory of the CyberCertPrinter Smart Contract (the “*Mapping*”), including the following details providing the meanings of certain capitalized terms herein:

“*Investor*” means the individual or entity identified by the value of the *investorName* variable stored in the Mapping, and, if an entity, the values of the *investorType* and *investorJurisdiction* variables stored in the Mapping.

“*Company*” means the entity identified by the values of the *cyberCORPName*, *cyberCORPJurisdiction*, and *cyberCORPType* variables stored in the Mapping.

“*Purchase Amount*” means an amount of U.S. dollars equal to the value of the *investmentAmountUSD* variable stored in the Mapping.

“*Post-Money Valuation Cap*” means an amount of U.S. dollars equal to the value of the *issuerUSDValuationAtTimeofInvestment* variable stored in the Mapping.

“*Governing Jurisdiction*” means the jurisdiction identified by the value of the *governingJurisdiction* variable stored in the *legalDetails* variable stored in the Mapping.

“*Company Address*” means the mailing and/or electronic address stored in the value of the *contactDetails*

variable stored in the value of the `companyDetails` variable stored in the Mapping.

“*Investor Address*” means the mailing and/or electronic address stored in the value of the `contactDetails` variable stored in the value of the `investorDetails` variable stored in the Mapping.

See Section 2 for certain additional defined terms.

The Company has certain administrative controls over the Certificate Token, including controls over the transferability of the Certificate Token and the power to set the status of the Certificate Token to “void” for any reason or no reason, in its sole discretion. In the event that the Company sets the status of the Certificate Token to “void” the Company will either issue the Investor a new Certificate Token or a paper certificate representing this SAFE, or will provide for representation of this SAFE in book-entry form on the books and records of the Company. In the event of a persistent “contentious hardfork” (as commonly understood in the blockchain industry) of any of the relevant blockchain systems that results in copies of the Certificate Token on each such blockchain system, the Company shall determine which copy of the Certificate Token is canonical in its sole and absolute discretion, and the Company may void, and shall not be required to honor any claims on, or afford any rights to, the copy of the Certificate Token determined by the Company to be non-canonical. In the event that the blockchain system determined by the Company to be canonical following a contentious hardfork itself subsequently undergoes its own contentious hardfork, this provision shall likewise apply to such contentious hardfork, *mutatis mutandis*.

1. Events

- (a) Equity Financing. If there is an Equity Financing before the termination of this SAFE, on the initial closing of such Equity Financing, this SAFE will automatically convert into the greater of: (1) the number of Standard Preferred Capital Securities equal to the Purchase Amount divided by the lowest price per Standard Preferred Capital Security; or (2) the number of SAFE Preferred Capital Securities equal to the Purchase Amount divided by the SAFE Price.

In connection with the automatic conversion of this SAFE into Standard Preferred Capital Securities or SAFE Preferred Capital Securities, the Investor will execute and deliver to the Company all of the transaction documents related to the Equity Financing; provided, that such documents (i) are the same documents to be entered into with the purchasers of Standard Preferred Capital Securities, with appropriate variations for the SAFE Preferred Capital Securities if applicable, and (ii) have customary exceptions to any drag-along applicable to the Investor, including (without limitation) limited representations, warranties, liability and indemnification obligations for the Investor.

- (b) Liquidity Event. If there is a Liquidity Event before the termination of this SAFE, the Investor will automatically be entitled (subject to the liquidation priority set forth in Section 1(d) below) to receive a portion of Proceeds, due and payable to the Investor immediately prior to, or concurrent with, the consummation of such Liquidity Event, equal to the greater of (i) the Purchase Amount (the “Cash-Out Amount”) or (ii) the amount payable on the number of Common Capital Securities equal to the Purchase Amount divided by the Liquidity Price (the “Conversion Amount”). If any of the Company’s securityholders are given a choice as to the form and amount of Proceeds to be received in a Liquidity Event, the Investor will be given the same choice, provided that the Investor may not choose to receive a form of consideration that the Investor would be ineligible to receive as a result of the Investor’s failure to satisfy any requirement or limitation generally applicable to the Company’s securityholders, or under any applicable laws.

Notwithstanding the foregoing, in connection with a Change of Control intended to qualify as a

tax-free reorganization, the Company may reduce the cash portion of Proceeds payable to the Investor by the amount determined by its board of directors in good faith for such Change of Control to qualify as a tax-free reorganization for income tax purposes, provided that such reduction (A) does not reduce the total Proceeds payable to such Investor and (B) is applied in the same manner and on a pro rata basis to all securityholders who have equal priority to the Investor under Section 1(d).

- (c) Dissolution Event. If there is a Dissolution Event before the termination of this SAFE, the Investor will automatically be entitled (subject to the liquidation priority set forth in Section 1(d) below) to receive a portion of Proceeds equal to the Cash-Out Amount, due and payable to the Investor immediately prior to the consummation of the Dissolution Event.
- (d) Liquidation Priority. In a Liquidity Event or Dissolution Event, this SAFE is intended to operate like standard non-participating Preferred Capital Securities. The Investor's right to receive its Cash-Out Amount is:
 - (i) Junior to payment of outstanding indebtedness and creditor claims, including contractual claims for payment and convertible promissory notes (to the extent such convertible promissory notes are not actually or notionally converted into Capital Securities);
 - (ii) On par with payments for other SAFEs and/or Preferred Capital Securities, and if the applicable Proceeds are insufficient to permit full payments to the Investor and such other SAFEs and/or Preferred Capital Securities, the applicable Proceeds will be distributed pro rata to the Investor and such other SAFEs and/or Preferred Capital Securities in proportion to the full payments that would otherwise be due; and
 - (iii) Senior to payments for Common Capital Securities.

The Investor's right to receive its Conversion Amount is (A) on par with payments for Common Capital Securities and other SAFEs and/or Preferred Capital Securities who are also receiving Conversion Amounts or Proceeds on a similar as-converted to Common Capital Securities basis, and (B) junior to payments described in clauses (i) and (ii) above (in the latter case, to the extent such payments are Cash-Out Amounts or similar liquidation preferences).

- (e) Termination. This SAFE will automatically terminate (without relieving the Company of any obligations arising from a prior breach of or non-compliance with this SAFE) immediately following the earliest to occur of: (i) the issuance of Capital Securities to the Investor pursuant to the automatic conversion of this SAFE under Section 1(a); or (ii) the payment, or setting aside for payment, of amounts due the Investor pursuant to Section 1(b) or Section 1(c).

2. Definitions

“Capital Securities” means the shares of capital stock, capital shares, membership interests, or similar equity securities of the Company, as the case may be, depending on the company's entity type and jurisdiction of formation, including the Common Capital Securities and the Preferred Capital Securities.

“Change of Control” means (i) a transaction or series of related transactions in which any “person” or “group” (within the meaning of Section 13(d) and 14(d) of the Securities Exchange Act of 1934, as amended), becomes the “beneficial owner” (as defined in Rule 13d-3 under the Securities Exchange Act of 1934, as amended), directly or indirectly, of more than 50% of the outstanding voting securities of the Company having the right to vote for the election of members of the Company's board of directors, (ii) any reorganization,

merger or consolidation of the Company, other than a transaction or series of related transactions in which the holders of the voting securities of the Company outstanding immediately prior to such transaction or series of related transactions retain, immediately after such transaction or series of related transactions, at least a majority of the total voting power represented by the outstanding voting securities of the Company or such other surviving or resulting entity or (iii) a sale, lease or other disposition of all or substantially all of the assets of the Company.

“Common Capital Securities” means the common shares, ordinary shares, shares of common stock, membership interests that are pro rata and pari passu to one another and do not have preferences over any other such membership interests, or similar equity securities of the Company, as the case may be, depending on the Company’s entity type and jurisdiction of formation.

“Company Capitalization” means the sum (on an as-converted to Common Capital Securities basis, and without double-counting, in each case), immediately prior to the Equity Financing, of:

- (a) all Capital Securities issued and outstanding;
- (b) all Converting Securities;
- (c) all (i) issued and outstanding Options and (ii) Promised Options; and
- (d) the Unissued Option Pool, except that any increase to the Unissued Option Pool in connection with the Equity Financing shall only be included to the extent that the number of Promised Options exceeds the Unissued Option Pool prior to such increase.

“Converting Securities” includes this SAFE and other convertible securities issued by the Company, including but not limited to: (i) other SAFEs; (ii) convertible promissory notes and other convertible debt instruments; and (iii) convertible securities that have the right to convert into Capital Securities.

“Direct Listing” means the Company’s initial listing of its Common Capital Securities (other than Common Capital Securities not eligible for resale under Rule 144 under the Securities Act) on a national securities exchange by means of an effective registration statement on Form S-1 filed by the Company with the SEC that registers existing Capital Securities of the Company for resale, as approved by the Company’s board of directors. For the avoidance of doubt, a Direct Listing will not be deemed to be an underwritten offering and will not involve any underwriting services.

“Dissolution Event” means (i) a voluntary termination of operations, (ii) a general assignment for the benefit of the Company’s creditors or (iii) any other liquidation, dissolution or winding up of the Company (excluding a Liquidity Event), whether voluntary or involuntary.

“Dividend Amount” means, with respect to any date on which the Company pays a dividend on its outstanding Common Capital Securities, the amount of such dividend that is paid per Common Capital Security multiplied by (x) the Purchase Amount divided by (y) the Liquidity Price (treating the dividend date as a Liquidity Event solely for purposes of calculating such Liquidity Price).

“Equity Financing” means a bona fide transaction or series of transactions with the principal purpose of raising capital, pursuant to which the Company issues and sells Preferred Capital Securities at a fixed valuation, including but not limited to, a pre-money or post-money valuation.

“Initial Public Offering” means the closing of the Company’s first firm commitment underwritten initial public offering of Common Capital Securities pursuant to a registration statement filed under the Securities Act.

“Liquidity Capitalization” is calculated as of immediately prior to the Liquidity Event, and (without double-counting, in each case calculated on an as-converted to Common Capital Securities basis):

Includes all Capital Securities issued and outstanding;

Includes all (i) issued and outstanding Options and (ii) to the extent receiving Proceeds, Promised Options;

Includes all Converting Securities, other than any SAFEs and other convertible securities (including without limitation Preferred Capital Securities) where the holders of such securities are receiving Cash-Out Amounts or similar liquidation preference payments in lieu of Conversion Amounts or similar “as-converted” payments; and

Excludes the Unissued Option Pool.

“Liquidity Event” means a Change of Control, a Direct Listing or an Initial Public Offering.

“Liquidity Price” means the price per security equal to the Post-Money Valuation Cap divided by the Liquidity Capitalization.

“Options” includes options, restricted stock awards or purchases, RSUs, SARs, warrants or similar securities, vested or unvested.

“Preferred Capital Securities” means the preferred shares, preference shares, shares of preferred stock, membership interests that have liquidation priorities over or other similar preferences over ordinary membership interests, or similar equity securities of the Company, as the case may be, depending on the Company’s entity type and jurisdiction of formation.

“Proceeds” means cash and other assets (including without limitation stock consideration) that are proceeds from the Liquidity Event or the Dissolution Event, as applicable, and legally available for distribution.

“Promised Options” means promised but ungranted Options that are the greater of those (i) promised pursuant to agreements or understandings made prior to the execution of, or in connection with, the term sheet or letter of intent for the Equity Financing or Liquidity Event, as applicable (or the initial closing of the Equity Financing or consummation of the Liquidity Event, if there is no term sheet or letter of intent), (ii) in the case of an Equity Financing, treated as outstanding Options in the calculation of the price per Standard Preferred Capital Security, or (iii) in the case of a Liquidity Event, treated as outstanding Options in the calculation of the distribution of the Proceeds.

“SAFE” means an instrument containing a future right to Capital Securities, similar in form and content to this instrument, purchased by investors for the purpose of funding the Company’s business operations. References to “this SAFE” mean this specific instrument.

“SAFE Preferred Capital Securities” means the Preferred Capital Securities to be issued to the Investor in an Equity Financing, having the identical rights, privileges, preferences and restrictions as the Standard Preferred Capital Securities, other than with respect to: (i) the per-share liquidation preference and the initial conversion price for purposes of price-based anti-dilution protection, which will equal the SAFE Price; and (ii) the basis for any dividend rights, which will be based on the SAFE Price

“SAFE Price” means the price per security equal to the Post-Money Valuation Cap divided by the Company Capitalization.

“Standard Preferred Capital Security” means the Preferred Capital Securities issued to the investors investing new money in the Company in connection with the initial closing of the Equity Financing.

“Unissued Option Pool” means all Capital Securities that are reserved, available for future grant and not subject to any outstanding Options or Promised Options (but in the case of a Liquidity Event, only to the extent Proceeds are payable on such Promised Options) under any equity incentive or similar Company plan.

3. Company Representations

- (a) The Company is duly organized, validly existing and in good standing under the laws of its jurisdiction of formation, and has the power and authority to own, lease and operate its properties and carry on its business as now conducted.
- (b) The execution, delivery and performance by the Company of this SAFE is within the power of the Company and has been duly authorized by all necessary actions on the part of the Company (subject to Section 3(d)). This SAFE constitutes a legal, valid and binding obligation of the Company, enforceable against the Company in accordance with its terms, except as limited by bankruptcy, insolvency or other laws of general application relating to or affecting the enforcement of creditors’ rights generally and general principles of equity. To its knowledge, the Company is not in violation of (i) its current certificate of incorporation, bylaws, memorandum and articles of association, operating agreement or equivalent governing documents, as the case may be, depending on the Company’s entity type and jurisdiction of formation, (ii) any material statute, rule or regulation applicable to the Company or (iii) any material debt or contract to which the Company is a party or by which it is bound, where, in each case, such violation or default, individually, or together with all such violations or defaults, could reasonably be expected to have a material adverse effect on the Company.
- (c) The performance and consummation of the transactions contemplated by this SAFE do not and will not: (i) violate any material judgment, statute, rule or regulation applicable to the Company; (ii) result in the acceleration of any material debt or contract to which the Company is a party or by which it is bound; or (iii) result in the creation or imposition of any lien on any property, asset or revenue of the Company or the suspension, forfeiture, or nonrenewal of any material permit, license or authorization applicable to the Company, its business or operations.
- (d) No consents or approvals are required in connection with the performance of this SAFE, other than: (i) the Company’s entity governance approvals; (ii) any qualifications or filings under applicable securities laws; and (iii) necessary entity governance approvals for the authorization of Capital Securities issuable pursuant to Section 1.
- (e) To its knowledge, the Company owns or possesses (or can obtain on commercially reasonable terms) sufficient legal rights to all patents, trademarks, service marks, trade names, copyrights, trade secrets, licenses, information, processes and other intellectual property rights necessary for its business as now conducted and as currently proposed to be conducted, without any conflict with, or infringement of the rights of, others.

4. Investor Representations

- (a) The Investor has full legal capacity, power and authority to execute and deliver this SAFE and to perform its obligations hereunder. This SAFE constitutes a valid and binding obligation of the Investor, enforceable in accordance with its terms, except as limited by bankruptcy, insolvency or other laws of general application relating to or affecting the enforcement of creditors’ rights

generally and general principles of equity.

- (b) The Investor is not a “U.S. person” as that term is defined under Rule 902 of the Securities Act, is not entering into this SAFE for the account of, or benefit of, any “U.S. person,” has submitted and shall submit to the Company such further assurances of such status as may be reasonably requested by the Company and (i) agrees to assign, sell or transfer this SAFE and the Certificate Token only in accordance with the provisions of Regulation S, pursuant to registration under applicable securities laws, or pursuant to an available exemption from registration and agrees not to engage in hedging transactions with regard to this SAFE unless in compliance with applicable securities laws, (ii) agrees that this SAFE and the Certificate Token shall contain a legend to the effect that transfer is prohibited except in accordance with the provisions of Regulation S, pursuant to registration under applicable securities laws or pursuant to an available exemption from registration and that hedging transactions involving this Agreement and the Tokens may not be conducted unless in compliance with applicable securities laws, and (iii) agrees that the Company may refuse to consent to any assignment of this Agreement not made in accordance with the provisions of Regulation S, pursuant to registration under applicable securities laws or pursuant to an available exemption from registration.
- (c) The Investor hereby undertakes and covenants to the Company that the Investor will promptly provide to the Company and/or its service providers all such information, confirmations, certifications, know-your-customer information and other information as is required of the Investor, the Company, or such service providers by law or applicable regulation in connection with the issuance and allotment of the SAFE Preference Shares, pursuant to the automatic conversion of this SAFE under Section 1(a). The Investor further agrees and acknowledges that the Company and/or its service providers may rely on the automatic conversion provisions contained herein in lieu of any signed share application forms or similar subscription documents solely for the purposes of effecting any allotment filings required by law and conversion of this SAFE..

5. Miscellaneous

- (a) Any provision of this SAFE may be amended, waived or modified by written consent of the Company and either (i) the Investor or (ii) the majority-in-interest of all then-outstanding SAFEs with the same “Post-Money Valuation Cap” and “Discount Rate” as this SAFE (and SAFEs lacking one or both of such terms will be considered to be the same with respect to such term(s)), provided that with respect to clause (ii): (A) the Purchase Amount may not be amended, waived or modified in this manner, (B) the consent of the Investor and each holder of such SAFEs must be solicited (even if not obtained), and (C) such amendment, waiver or modification treats all such holders in the same manner. “*Majority-in-interest*” refers to the holders of the applicable group of SAFEs whose SAFEs have a total Purchase Amount greater than 50% of the total Purchase Amount of all of such applicable group of SAFEs.
- (b) All notices and other communications required or permitted pursuant to this SAFE shall be in writing and shall be deemed effectively given upon the earlier of: (i) personal delivery to the party to be notified; or (ii) on the third business day after being sent, if sent to the Company Address or Investor Address, as applicable and the sending party preserves clear and convincing evidence (such as a certified mail receipts, if the Company Address or Investor Address, as applicable, includes a physical mailing address that was used for the notice, or such as timestamped data records if the Company Address or Investor Address, as applicable included an email or digital messaging address that was used for the notice).

- (c) The Investor is not entitled, as a holder of this SAFE, to vote or be deemed a holder of Capital Securities for any purpose other than tax purposes, nor will anything in this SAFE be construed to confer on the Investor, as such, any rights of a Company stockholder or rights to vote for the election of directors or on any matter submitted to Company stockholders, or to give or withhold consent to any entity governance action or to receive notice of meetings, until shares have been issued on the terms described in Section 1. However, if the Company pays a dividend on outstanding Common Capital Securities (that is not payable in Common Capital Securities) while this SAFE is outstanding, the Company will pay the Dividend Amount to the Investor at the same time.
- (d) Neither this SAFE nor the rights in this SAFE are transferable or assignable, by operation of law or otherwise, by either party without the prior written consent of the other; provided, however, that this SAFE and/or its rights may be assigned without the Company's consent by the Investor (i) to the Investor's estate, heirs, executors, administrators, guardians and/or successors in the event of Investor's death or disability, or (ii) to any other entity who directly or indirectly, controls, is controlled by or is under common control with the Investor, including, without limitation, any general partner, managing member, officer or director of the Investor, or any venture capital fund now or hereafter existing which is controlled by one or more general partners or managing members of, or shares the same management company with, the Investor. Transferability of the Certificate Token requires the prior written consent of the Company, which may be granted by the Company making changes on the applicable blockchain system to enable the Certificate Token to become transferable on such blockchain system. Unless the Certificate Token has been voided, the Investor shall not make any transfer or assignment of this SAFE or any rights under this SAFE without transferring the Certificate Token to the same transferee or assignee. In the case of a transfer or assignment of the SAFE by operation of law or that is otherwise involuntary and does not entail transfer of the Certificate Token, or with respect to which the transferee or assignee does not wish to or cannot accept the Certificate Token, the Investor and the transferee or assignee shall notify the Company as promptly as far as reasonably practicable in advance of (if possible) or (if advance notice is not possible) as promptly as reasonably practicable after such transfer or assignment, and, for the avoidance of doubt, the Company may void the Certificate Token, issue a new Certificate Token, switch this SAFE to book-entry-only, or take any other reasonable good faith action to avoid any duplication of this SAFE and the Certificate Token or any rights hereunder or thereunder and to ensure the accuracy of the books and records of the Company and outstanding Certificate Tokens in light of the transfer or assignment.
- (e) In the event any one or more of the provisions of this SAFE is for any reason held to be invalid, illegal or unenforceable, in whole or in part or in any respect, or in the event that any one or more of the provisions of this SAFE operate or would prospectively operate to invalidate this SAFE, then and in any such event, such provision(s) only will be deemed null and void and will not affect any other provision of this SAFE and the remaining provisions of this SAFE will remain operative and in full force and effect and will not be affected, prejudiced, or disturbed thereby.
- (f) All rights and obligations hereunder will be governed by the laws of the Governing Jurisdiction, without regard to the conflicts of law provisions of such jurisdiction.
- (g) The parties acknowledge and agree that for income tax purposes this SAFE is, and at all times has been, intended to be characterized as stock, and more particularly as common stock (including for purposes of Sections 304, 305, 306, 354, 368, 1036 and 1202 of the Internal Revenue Code of 1986, as amended, if applicable). Accordingly, the parties agree to treat this SAFE consistent with the foregoing intent for all income tax purposes (including, without limitation, on their

respective tax returns or other informational statements).

- (h) This SAFE may be executed in any number of counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument. Counterparts may be delivered via facsimile, electronic mail or other transmission method, including blockchain systems records of private key signatures, and any counterpart so delivered shall be deemed to have been duly and validly delivered and be valid and effective for all purposes, including that the parties shall be entitled to rely on any such electronic signature for the purposes of any electronic signature laws of the Governing Jurisdiction.
- (i) All token values in the smart contracts referred to herein are represented as uint256 integers with 18-decimal-place precision (10^{18}). Percentages, multipliers and rates are stored with 4-decimal-place precision (10^4). Precision of mathematic operations will be normalized to 18 decimals of precisions (10^{18}) and any operations exceeding that will be truncated.

[Restrictive Legends follow.]

RESTRICTIVE LEGENDS

RIA COMPLIANCE LEGEND. THE CERTIFICATE TOKEN MAY NOT BE USED TO EFFECT A TRANSFER OR TO OTHERWISE FACILITATE A CHANGE IN BENEFICIAL OWNERSHIP OF THIS SAFE WITHOUT THE PRIOR CONSENT OF THE COMPANY.

REGULATION S LEGEND. THIS SAFE AND THE CERTIFICATE TOKEN HAVE NOT BEEN, AND WILL NOT BE, REGISTERED UNDER ANY SECURITIES LAWS, INCLUDING THOSE OF THE UNITED STATES OF AMERICA. THIS SAFE AND THE CERTIFICATE TOKEN ARE ONLY BEING OFFERED FOR SALE OUTSIDE THE UNITED STATES OF AMERICA TO PERSONS OTHER THAN U.S. PERSONS IN OFFSHORE TRANSACTIONS MEETING THE REQUIREMENTS OF REGULATION S UNDER THE SECURITIES ACT (“REGULATION S”). AS USED HEREIN, THE TERMS “OFFSHORE TRANSACTIONS” AND “U.S. PERSON” HAVE THE MEANINGS GIVEN TO THEM IN REGULATION S. THIS AGREEMENT. THIS SAFE AND THE CERTIFICATE TOKEN ARE NOT PERMITTED TO BE OFFERED OR SOLD (INCLUDING OPENING A SHORT POSITION IN SUCH SECURITIES) IN THE UNITED STATES OR TO U.S. PERSONS AS DEFINED BY RULE 902(k) ADOPTED UNDER THE ACT, UNLESS THEY ARE REGISTERED UNDER THE SECURITIES ACT OF 1933 (THE “ACT”), OR AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE ACT IS AVAILABLE. YOU MAY RESELL SUCH SECURITIES ONLY PURSUANT TO AN EXEMPTION FROM REGISTRATION UNDER THE ACT OR OTHERWISE IN ACCORDANCE WITH THE PROVISIONS OF REGULATION S OF THE ACT, OR IN TRANSACTIONS EFFECTED OUTSIDE OF THE UNITED STATES PROVIDED YOU DO NOT SOLICIT (AND NO ONE ACTING ON YOUR BEHALF SOLICITS) PURCHASERS IN THE UNITED STATES OR OTHERWISE ENGAGE(S) IN SELLING EFFORTS IN THE UNITED STATES AND PROVIDED THAT HEDGING TRANSACTIONS INVOLVING THESE SECURITIES MAY NOT BE CONDUCTED UNLESS IN COMPLIANCE WITH THE ACT AND ALL OTHER APPLICABLE SECURITIES LAWS. A HOLDER OF THE SECURITIES WHO IS A DISTRIBUTOR, DEALER, SUB-UNDERWRITER OR OTHER SECURITIES PROFESSIONAL, IN ADDITION, CANNOT RESELL THE SECURITIES TO A U.S. PERSON AS DEFINED BY RULE 902(k) OF REGULATION S UNLESS THE SECURITIES ARE REGISTERED UNDER THE ACT OR AN EXEMPTION FROM REGISTRATION UNDER THE ACT IS AVAILABLE.

CONTENTIOUS HARDFORK LEGEND. IN THE EVENT THAT THE BLOCKCHAIN SYSTEM ON WHICH THE CERTIFICATE TOKEN WAS ORIGINALLY ISSUED UNDERGOES A PERSISTENT “CONTENTIOUS HARDFORK” (AS COMMONLY UNDERSTOOD IN THE BLOCKCHAIN INDUSTRY, RESULTING IN TWO INDEPENDENT BLOCKCHAIN SYSTEMS THAT ARE BOTH REASONABLY EXPECTED TO HAVE INDEPENDENT PERSISTENT COMMERCIAL VALUE), NO COPY OF THE CERTIFICATE TOKEN MAY BE OFFERED, SOLD, OR OTHERWISE TRANSFERRED, PLEDGED, OR HYPOTHECATED UNTIL THE COMPANY HAS DETERMINED, IN ITS SOLE AND ABSOLUTE DISCRETION, WHICH BLOCKCHAIN SYSTEM (AND WHICH CERTIFICATE TOKENS) TO TREAT AS CANONICAL, AND THEN ONLY THE CERTIFICATE TOKEN THUS DETERMINED BY THE COMPANY TO BE CANONICAL MAY BE OFFERED, SOLD, OR OTHERWISE TRANSFERRED, PLEDGED, OR HYPOTHECATED (TO THE EXTENT OTHERWISE PERMITTED). IN THE EVENT THAT THE BLOCKCHAIN SYSTEM DETERMINED BY THE COMPANY TO BE CANONICAL FOLLOWING A CONTENTIOUS HARDFORK ITSELF SUBSEQUENTLY UNDERGOES ANOTHER CONTENTIOUS HARDFORK, THIS RESTRICTIVE LEGEND SHALL LIKEWISE APPLY TO SUCH OTHER CONTENTIOUS HARDFORK, MUTATIS MUTANDIS.

